**State of Wisconsin**
**DEPARTMENT OF NATURAL RESOURCES**
**1027 W St. Paul Ave**
**Milwaukee, WI 53233**

**Tony Evers, Governor**
**Karen Hyun, Ph.D., Secretary**
**Telephone 608-266-2621**
**Toll Free 1-888-936-7463**
**TTY Access via relay - 711**

10/15/2026

IP-SE-2026-30-02789

Zilber Property Group
Jason Lueders
710 N. Plankinton Ave
Milwaukee, WI 53203

RE: Permit to construct a pond within 500ft of an unnamed stream (WBIC 735650) in the Village of Pleasant Prairie, Kenosha County

Dear Jason Lueders,

The Department of Natural Resources has completed its review of your application for a permit to construct a pond within 500ft of an unnamed stream (WBIC 735650) located in the SW 1/4, NW 1/4, Section 27, Township 01, Range 22E, in the Village of Pleasant Prairie, Kenosha County. You will be pleased to know your application is approved.

I am attaching a copy of your permit, which lists the conditions that must be followed to protect water quality and habitat. A copy of the permit must be posted for reference at the project site. Please read your permit conditions carefully so that you are fully aware of what is expected of you.

Please note you are required to submit photographs of the completed project within 7 days after you've finished construction. This helps both of us to document the completion of the project and compliance with the permit conditions.

Your next step will be to notify me of the date on which you plan to start construction and again after your project is complete.

If you have any questions about your permit, please call me at (608) 598-0346 or you can reach me by email at sonya.ponzi@wisconsin.gov.

Sincerely,

Sonya C. Ponzi

Sonya Ponzi
Water Management Specialist

Email CC:
Lorin Kinney – USACE
Peggy Herrick – Village of Pleasant Prairie
Andrew Shoaf – Pinnacle Engineering Group

**STATE OF WISCONSIN**
**DEPARTMENT OF NATURAL RESOURCES**
**POND INDIVIDUAL PERMIT**
**IP-SE-2026-30-01917**

Application of Jason Lueders, is hereby granted under Sections 30.19 and 30.208, Wis. Stats., a permit to construct a pond within 500ft of an unnamed stream (WBIC 735650) located in the SW 1/4, NW 1/4, Section 27, Township 01, Range 22E, in the Village of Pleasant Prairie, Kenosha County, subject to the following conditions:

**PERMIT**

1. You must notify Sonya Ponzi at phone (608) 598-0346 or email sonya.ponzi@wisconsin.gov at least 5 days before starting construction and again not more than 5 days after the project is complete.
2. You must complete the project as described **on or before 10/15/2029**. If you will not complete the project by this date, you must submit a written request for an extension prior to expiration of the initial time limit specified in the permit. Your request must identify the requested extension date. The Department shall extend the time limit for an individual permit or contract for no longer than an additional 5 years if you request the extension before the initial time limit expires. You may not begin or continue construction after the original permit expiration date unless the Department extends the permit in writing or grants a new permit.
3. This permit does not authorize any work other than what you specifically describe in your application and plans, and as modified by the conditions of this permit. If you wish to alter the project or permit conditions, you must first obtain written approval of the Department.
4. Before you start your project, you must first obtain any permit or approval that may be required for your project by local zoning ordinances and by the U.S. Army Corps of Engineers. You are responsible for contacting these local and federal authorities to determine if they require permits or approvals for your project. These local and federal authorities are responsible for determining if your project complies with their requirements.
5. Upon reasonable notice, you shall allow access to your project site during reasonable hours to any Department employee who is investigating the project's construction, operation, maintenance or permit compliance.
6. The Department may modify or revoke this permit for good cause, including if the project is not completed according to the terms of the permit or if the Department determines the activity is detrimental to the public interest.
7. You must **post a copy of this permit at a conspicuous location on the project site** , visible from the waterway, for at least five days prior to construction, and remaining at least five days after construction. You must also have a copy of the permit and approved plan available at the project site at all times until the project is complete.
8. Your acceptance of this permit and efforts to begin work on this project signify that you have **read, understood, and agreed** to follow all conditions of this permit.
9. You must **submit a series of photographs to the Department**, within one week of completing work on the site. The photographs must be taken from different vantage points and depict all work authorized by this permit.
10. You, your agent, and any involved contractors or consultants may be considered a party to the violation pursuant to Section 30.292, Wis. Stats., for any violations of s. 30, Wis. Stats., or this permit.
11. Construction shall be accomplished in such a manner as to minimize erosion and siltation into surface waters. Erosion control measures (such as silt fence and straw bales) must meet or exceed the technical standards of ch. NR 151, Wis. Adm. Code. The technical standards are found online at: http://dnr.wi.gov/topic/stormwater/standards/const_standards.html.
12. All equipment used for the project including but not limited to tracked vehicles, barges, boats, hoses, sheet pile and pumps shall be de-contaminated for invasive and exotic viruses and species prior to use and after use. The following steps must be taken every time you move your equipment to avoid transporting invasive and exotic viruses and species. To the extent

practicable, equipment and gear used on infested waters shall not be used on other non-infested waters.

1. **Inspect and remove** aquatic plants, animals, and mud from your equipment.
2. **Drain all water** from your equipment that comes in contact with infested waters, including but not limited to tracked vehicles, barges, boats, hoses, sheet pile and pumps.
3. **Dispose** of aquatic plants, animals in the trash. Never release or transfer aquatic plants, animals or water from one waterbody to another.
4. **Wash your equipment** with hot (>140º F) and/or high-pressure water, - OR - Allow your equipment to **dry thoroughly for 5 days** .

## POND SPECIFIC PERMIT CONDITIONS

1. The permittee, heirs, successors, or assignees must comply with laws for platting of land and sanitation, and with local zoning ordinances, and with standards developed for shorelands and floodplains in ch. NR 115 and NR 116, Wis. Adm. Codes.
2. The pond must not be associated with any metallic or non-metallic mining project.
3. You must not deposit or store any of the graded materials in any wetland or below the ordinary high water mark of any waterway. All graded materials must be placed out of the floodway of any stream.

## FINDINGS OF FACT

1. Jason Lueders, 710 N. Plankinton Ave., Milwaukee, WI 53203, filed an application with this Department on 06/18/2026, under ss. 30.19 and 30.208, Wis. Stats., to construct a pond within 500ft of an unnamed stream (WBIC 735650) located in the SW 1/4, NW 1/4, Section 27, Township 01, Range 22E, in the Village of Pleasant Prairie, Kenosha County.
2. The project will consist of the development of 23 acres of vacant field with the Park into a commercial development. The project includes 2 proposed buildings totaling 208,350 square feet with exterior parking, truck docks, and stormwater management features. A wetland delineation was performed by LandCO2 in April of 2016 that included 2 wetlands. The discharge will permanently and directly affect a total of 1.46 acres of wetland.
3. The Department has completed an investigation of the project site and has evaluated the project as described in the application and plans.
4. Unnamed Stream (WBIC 735650) is a navigable water (and no bulkhead exists at the project site).
5. The proposed project, if constructed in accordance with this permit, will not adversely affect water quality, will not increase water pollution in surface waters, and will not cause environmental pollution as defined in s. 283.01(6m), Wis. Stats.
6. Pond construction will not impact wetlands if constructed in accordance with this permit.
7. The Department of Natural Resources has determined that the agency’s review of the proposed project constitutes an integrated analysis action under ch. NR 150.20(2), Wis. Adm. Code. The Department has considered the impacts on the human environment, alternatives to the proposed projects and has provided opportunities for public disclosure and comment. The Department has completed all procedural requirements of s. 1.11(2)(c), Wis. Stats., and ch. NR 150, Wis. Adm. Code, for this project.
8. The Department of Natural Resources has completed all procedural requirements and the project as permitted will comply with all applicable requirements of Sections 30.19 and 30.208, Wis. Stats., and chs. NR 102, 103, and 343, Wis. Adm. Code. The applicant was responsible for fulfilling the procedural requirements for publication of notices under s. 30.208(5)(c)1m., Wis. Stats., and was responsible for publication of the notice of pending application under s. 30.208(3)(a), Wis. Stats., or the notice of public informational hearing under s. 30.208(3)(c), Wis. Stats., or both. Section 30.208(3)(e), Wis. Stats., provides that if no public hearing is held, the Department must issue its decision within 30 days of the 30-day public comment period, and if a public hearing is held, the Department must issue its decision within 20 days after the 10-day period for public comment after the public hearing. Section 30.208(5)(bm), Wis. Stats., requires the Department to consider the date on which the department publishes a notice on its web site as the date of notice.

9. The activity will not cause environmental pollution as defined in s. 299.01(4), Wis. Stats.
10. No material injury will result to the riparian rights of any riparian owners of real property that abuts any water body that is affected by the activity.

## CONCLUSIONS OF LAW

1. The Department has authority under the above indicated Statutes and Administrative Codes, to issue a permit for the construction and maintenance of this project.
2. The Department has complied with s. 1.11, Wis. Stats.

## NOTICE OF APPEAL RIGHTS

If you believe that you have a right to challenge this decision, you should know that the Wisconsin statutes and administrative rules establish time periods within which requests to review Department decisions shall be filed. For judicial review of a decision pursuant to sections 227.52 and 227.53, Wis. Stats., you have 30 days after the decision is mailed, or otherwise served by the Department, to file your petition with the appropriate circuit court and serve the petition on the Department. Such a petition for judicial review shall name the Department of Natural Resources as the respondent.

To request a contested case hearing of any individual permit decision pursuant to section 30.209, Wis. Stats., you have 30 days after the decision is mailed, or otherwise served by the Department, to serve a petition for hearing on the Secretary of the Department of Natural Resources, P.O. Box 7921, Madison, WI, 53707-7921. The petition shall be in writing, shall be dated and signed by the petitioner, and shall include as an attachment a copy of the decision for which administrative review is sought. If you are not the applicant, you must simultaneously provide a copy of the petition to the applicant. If you wish to request a stay of the project, you must provide information, as outlined below, to show that a stay is necessary to prevent significant adverse impacts or irreversible harm to the environment. If you are not the permit applicant, you must provide a copy of the petition to the permit applicant at the same time that you serve the petition on the Department.

**The filing of a request for a contested case hearing is not a prerequisite for judicial review and does not extend the 30-day period for filing a petition for judicial review.**

A request for contested case hearing must meet the requirements of section 30.209, Wis. Stats., and chs.NR 2.03, 2.05, and 300.09(5), Wis. Adm. Code, and if the petitioner is not the applicant the petition must include the following information:

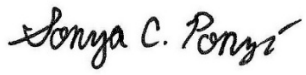
1. A description of the objection that is sufficiently specific to allow the department to determine which provisions of this section may be violated if the proposed permit or contract is allowed to proceed.
2. A description of the facts supporting the petition that is sufficiently specific to determine how the petitioner believes the project, as proposed, may result in a violation of s. 30, Wis. Stats.
3. A commitment by the petitioner to appear at the administrative hearing and present information supporting the petitioner’s objection.

If the petition contains a request for a stay of the project, the petition must also include information showing that a stay is necessary to prevent significant adverse impacts or irreversible harm to the environment.

Dated at the Southeast Region Headquarters, Milwaukee, Wisconsin office on 10/15/2026.

STATE OF WISCONSIN DEPARTMENT OF NATURAL RESOURCES
For the Secretary

By:



Sonya Ponzi
Water Management Specialist